

ORIGIN TALENT

Exceptional People, Trusted in Your Home

Client Service Agreement

First Floor, Dainfern Square, Cnr Winnie Mandela & Broadacres Drive, Dainfern, Johannesburg, 2191 | +27 10 502 0105 |
WhatsApp +27 76 958 1501 | admin@origintalent.co.za

This document is a template — complete the details below and review with your Origin Talent consultant before signature.

This Client Service Agreement ("Agreement") is entered into by:

Business Name: Origin Talent

Registration Number:

Address:

First Floor, Dainfern Square, Cnr Winnie Mandela & Broadacres Drive, Dainfern,
Johannesburg, 2191

Telephone:

+27 10 502 0105

Email:

admin@origintalent.co.za

AND

Full Name:

ID Number:

Address:

Telephone:

Email:

1. Appointment

1.1 The Client appoints the Staffing Agency to recruit, screen, and supply temporary, contract, fixed-term, or permanent employees according to the Client's staffing requirements.

1.2 The Staffing Agency accepts the appointment subject to the terms and conditions contained in this Agreement.

2. Services Provided

2.1 The Staffing Agency shall provide one or more of the following services:

- Recruitment and selection of employees.
- Candidate interviews and screening.
- Qualification verification where applicable.
- Reference checking.
- Criminal and credit checks where legally permissible and authorised.
- Temporary Employment Services (TES).
- Contract staffing.
- Permanent placements.
- Payroll administration (where applicable).
- HR support services.

3. Client Responsibilities

3.1 The Client undertakes to:

- Provide accurate job descriptions.
- Inform the Staffing Agency of all required qualifications, skills, experience, and medical or legal requirements relevant to the role.
- Maintain a safe workplace in accordance with the Occupational Health and Safety Act.
- Ensure fair treatment of assigned employees.
- Supervise employees during assignments.
- Notify the Staffing Agency immediately of any workplace incidents, misconduct, absenteeism, disciplinary issues, or injuries.
- Allow the Staffing Agency reasonable access to employees where necessary.

4. Fees and Payment

4.1 The Client agrees to pay all invoices issued by the Staffing Agency.

4.2 Unless otherwise agreed:

- Payment terms are strictly 30 days from the date of invoice.
- Interest may be charged on overdue accounts at the maximum rate permitted by law.
- Collection costs and legal fees incurred in recovering unpaid accounts shall be for the Client's account.

5. Temporary Employment Services (TES)

5.1 Where employees are supplied on a temporary basis:

- The Staffing Agency remains the employer for payroll purposes unless otherwise agreed.
- The Client shall supervise the employees during working hours.
- The Client shall comply with all obligations imposed by the Labour Relations Act regarding Temporary Employment Services.
- The Client shall not require employees to perform unlawful or unsafe work.

6. Permanent Placements

6.1 Permanent placement fees become payable immediately once a candidate accepts employment.

6.2 Should the Client employ a candidate introduced by the Staffing Agency within twelve (12) months of introduction, the agreed placement fee shall remain payable.

7. Replacement Guarantee

7.1 Where a permanent employee resigns or is lawfully dismissed for poor performance within the first ninety (90) days of employment, the Staffing Agency shall make reasonable efforts to provide one replacement candidate at no additional recruitment fee, provided:

- The original invoice has been paid in full.
- The Client followed a fair probation process.
- The employee was not dismissed due to redundancy or restructuring.

8. Confidentiality

8.1 Both Parties agree to keep confidential all information relating to:

- Business operations.
- Clients.
- Candidates.
- Pricing.
- Trade secrets.
- Recruitment processes.

8.2 Such information shall not be disclosed except where required by law.

9. Protection of Personal Information (POPIA)

9.1 Both Parties undertake to comply with the Protection of Personal Information Act, 2013.

9.2 The Client agrees that:

- Candidate information shall be used solely for recruitment purposes.
- Candidate information shall not be shared with third parties without lawful authority.
- Personal information shall be securely stored.
- Personal information shall be destroyed when no longer required.

10. Non-Solicitation

10.1 The Client agrees not to employ, directly or indirectly, any employee or candidate introduced by the Staffing Agency without paying the applicable placement fee if such employment occurs within twelve (12) months of the introduction.

11. Liability

11.1 The Staffing Agency exercises reasonable care when recruiting employees.

11.2 However:

- The final hiring decision rests solely with the Client.
- The Staffing Agency does not guarantee employee performance.
- The Staffing Agency shall not be liable for any indirect or consequential losses arising from the actions of supplied employees except where required by law.

12. Health and Safety

12.1 The Client shall:

- Provide a safe working environment.
- Conduct workplace induction where required.
- Supply necessary protective clothing and equipment.
- Report workplace injuries immediately.
- Comply with the Occupational Health and Safety Act.

13. Dispute Resolution

13.1 Any dispute arising from this Agreement shall first be resolved through negotiation.

13.2 If unresolved within fourteen (14) days, the Parties may refer the dispute to mediation or arbitration before approaching a court of competent jurisdiction.

14. Termination

14.1 Either Party may terminate this Agreement by giving thirty (30) days' written notice.

14.2 Termination shall not affect:

- Outstanding payments.
- Confidentiality obligations.
- Any rights accrued before termination.

15. Governing Law

15.1 This Agreement shall be governed by the laws of the Republic of South Africa.

16. Entire Agreement

16.1 This document constitutes the entire agreement between the Parties.

16.2 No amendment shall be valid unless reduced to writing and signed by both Parties.

Signed at

For the Staffing Agency

Business Name: Origin Talent

Representative:

Position:

Signature:

Date:

For the Client

Full Name:

Position:

Signature:

Date:
